

to produce “annual profit & loss statements, annual revenue reports, and annual expense reports” (“Reports”) to Richards for a period of five years. (FAC ¶11.) Plaintiff alleges that not only were the Reports not produced, but that AGC knew when it entered the Agreement that it could not produce the types of reports for which Plaintiff bargained. (FAC ¶ 24.)

II. Procedural History (Discovery)

On or about February 9, 2023, Plaintiff’s counsel served AGC with a Request for Special Interrogatories, Set One (“SROGS.”) (Declaration of Makayla M. Whitney (“Whitney Decl.”) ¶ 2.) On or about March 14, 2023, AGC provided its response (*Ibid.*, Ex. A.) On or about November 12, 2024, Plaintiff’s counsel served AGC with the Demand for Inspection of certain electronic devices (“Inspection Demand”) (Whitney Decl. ¶ 3, Ex. B.) AGC provided an unverified response on December 16, 2024, with a verified response provided on January 10, 2025. (Whitney Decl. ¶¶ 4,5.)

The parties have engaged in substantial meet and confer efforts but have been unable to come to a resolution.

III. Legal Standard

Motions to compel further responses to requests for production or inspection must set forth specific facts showing good cause justifying the discovery sought by the request. (CCP § 2031.310(b).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531; see also *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 [characterizing good cause as “a fact-specific showing of relevance”].) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to disclosure of the documents. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

The scope of permissible discovery is very broad. [citation]. “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.) For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. Admissibility is *not* the test. Rather, it is sufficient if the information sought might reasonably lead to other admissible evidence. [citation].

(*Children’s Hospital Central California v. Blue Cross of California* (2014) 226 Cal.App.4th 1260-1276-1277.) The scope of discovery is one of reason, logic and common sense. (*Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1612.)

III. Discussion

Plaintiff seeks further responses to the following:

Demand No. 1: To inspect any ELECTRONIC MEDIA ANGELS GUN CLUB utilized to input, organize, maintain, and store ANGELS GUN CLUB financial data from October 2021 to present.

Demand No. 2: To inspect any ELECTRONIC MEDIA ANGELS GUN CLUB utilizes to input, organize, maintain, and store QuickBooks software or any other methods of accounting from October 2021 to present.

Demand No. 3: To inspect any ELECTRONIC MEDIA ANGELS GUN CLUB utilized to back up any ANGELS GUN CLUB financial data and meeting minutes from October 2021 to present.

Demand No. 4: To inspect any ELECTRONIC MEDIA ANGELS GUN CLUB utilizes to draft, input, organize, maintain, and store ANGELS GUN CLUB board of directions meeting minutes from October 2021 to present.

Plaintiff argues that the demands for inspection Nos. 1-3 are relevant and admissible—or likely to lead to admissible evidence—because they go to the heart of the dispute over AGC’s ability to properly maintain and produce the Reports specified in the Agreement. Plaintiff asserts that in the meet and confer efforts, it clarified the scope and purpose of the discovery was to analyze AGC’s financial reporting capabilities and that this information was necessary for the expert to find meta data on the specific computers and to “ensure all the data is available to run this, and that meta data usually hides in other parts of the computers.” (Whitney Decl. ¶ 6, Ex. D.)

Plaintiff argues that demand no. 4 is relevant and likely to lead to admissible evidence because they are seeking to determine whether any meeting minutes have been deleted, altered, or destroyed. Plaintiff argues that there was a heated debate at an AGC meeting regarding the matters of this lawsuit which is mysteriously absent from the minutes. Plaintiff also asserts that the meeting minutes may have contained information related to the Reports and/or tax status of AGC.

To each of these demands, AGC responded in a substantially identical manner, stating:

This inspection request is not reasonably calculated to lead to the discovery of relevant evidence. This Request is not reasonably limited and is overbroad in its scope. Counsel undersigned attempted to meet and confer with opposing counsel regarding the need for such discovery, the purported relevance of it to any of Plaintiff’s claims in this matter, and received only a very vague description of the inspection intended.